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01_MobileDistribution_PixelRush-Broadlaunch.docx

30 findings. 31 of 39 library checks ran

High 21 Medium 9

Overview | Library Findings | 9 open | Action 21 | Memo | Redlines | Contract

Contract review findings (30)

7 of 7 batches complete

AI Accuracy & Risk (3)	✓	AI Audit & Incident (2)	✓
AI Output & IP (3)	✓	AI Provider Chain (6)	✓
AI Regulatory Exposure (9)	✓	AI Training Data Rights (3)	✓
AI Use Disclosure & Scope (5)	✓		

High-severity findings are added to Action Items automatically — you can remove any of them from the action list. Use **"Add to action items"** on any other finding to elevate it manually.

All states | All severities | All categories | All topics

☐ Hide items needing confirmation

AI Provider Chain (5)

HIGH **Auto-added to action items**

AI inference endpoint region undisclosed or outside data-residency scope

The contract is silent on data-residency for storage and processing and does not address AI inference routing. If Broadlaunch Mobile uses third-party AI models, nothing prevents inference...

HIGH **Auto-added to action items**

AI regulatory penalties not carved out of liability cap

Liability is capped at the greater of amounts paid/owing or $100,000, with carve-outs limited to confidentiality breaches, IP infringement, and indemnity. There is no carve-out or super-cap for...

HIGH Auto-added to action items

Upstream foundation-model provider undisclosed

The contract is silent on whether Broadlaunch Mobile uses any third-party foundation models and does not disclose upstream AI providers, their terms, or data-handling locations. This obscures th...

MEDIUM

AI exclusions in cyber / E&O / media-liability insurance

The contract is silent on insurance requirements and contains no assurance that Broadlaunch Mobile's cyber, tech E&O, or media-liability policies cover AI-related risks or AI-generated content...

MEDIUM

Flow-down terms missing for model vendors

The contract is silent on flowing down privacy, confidentiality, no-training, residency, and breach-notification obligations to any upstream AI/model vendors Broadlaunch Mobile may use. This...

AI Audit & Incident (2)

MEDIUM

No AI incident reporting obligation

The contract is silent on AI-specific incident reporting by Broadlaunch Mobile (e.g., material model failures, bias incidents, prohibited-output events like CSAM or unlawful deepfakes,...

MEDIUM

No audit, red-team, or bias-testing rights

The contract is silent on any PixelRush Studios rights to audit, red-team, or review bias/safety testing for AI systems Broadlaunch Mobile may use in the Mobile Application. Without these rights...

AI Accuracy & Risk (3)

HIGH Auto-added to action items

No human-in-the-loop requirement for high-stakes decisions

The contract is silent on any requirement that AI-assisted decisions in high-stakes contexts (e.g., employment, credit, healthcare, housing, benefits, insurance) receive qualified human review...

MEDIUM

No accuracy disclaimer or hallucination risk acknowledgment

The contract is silent on any AI output accuracy or hallucination disclaimer. If Broadlaunch Mobile incorporates AI-generated content or recommendations in the Mobile Application or related...

MEDIUM

No model-change notification

The contract is silent on model-change notification or change-management if Broadlaunch Mobile adds or modifies AI models, prompts, or training/grounding data in the Mobile Application after...

AI Training Data Rights (3)

HIGH Auto-added to action items

No-training obligation does not survive termination

The contract is silent on any no-training obligation and consequently on its survival. Section 5.7 lists surviving provisions (confidentiality, warranties, payments) but does not address...

HIGH Auto-added to action items

Training on customer data without explicit consent

The contract is silent on prohibiting Broadlaunch Mobile from using end-user data, content, prompts/outputs, or gameplay telemetry to train, fine-tune, evaluate, or benchmark AI models, an...

MEDIUM

Derived / usage data used for training

The contract is silent on whether Broadlaunch Mobile may use telemetry, analytics, “derived,” “service,” “usage,” or aggregated/anonymized data from the GemCrush Saga mobile app to train o...

AI Use Disclosure & Scope (5)

HIGH Auto-added to action items

AI agent authority and scope not defined

The contract is silent on agentic AI. If Broadlaunch Mobile deploys AI agents in the Mobile Application (e.g., initiating purchases, messaging users, modifying records, interacting with...

HIGH Auto-added to action items

AI feature disclosure missing or vague

The contract is silent on whether any features of the Mobile Application use AI/ML, the type of AI, whether such features are on by default, and which third-party models/providers are involved....

HIGH Auto-added to action items

User-facing AI not labeled

The contract is silent on labeling or watermarking AI-generated content presented to end users. Since California law governs and the Territory includes EMEA, compliance with U.S./California and...

MEDIUM

AI use prohibition absent when no AI declared

The contract is silent on prohibiting Broadlaunch Mobile from using PixelRush Studios, Inc.'s materials or any related data to train or fine-tune AI/ML systems. There is no carve-out preventing...

MEDIUM

Scope of AI processing undefined

The contract is silent on the scope of any AI processing (inputs, outputs, access, retention, reuse, and downstream use). If Broadlaunch Mobile adds AI features, there are no limits on what data the...

AI Regulatory Exposure (9)

HIGH Auto-added to action items

California AB 2013 training-data transparency obligations not addressed

The contract is silent on California AB 2013 (Cal. Bus. & Prof. Code § 22757 et seq.) training-data transparency obligations and who bears compliance costs/risks if Broadlaunch Mobile develops or...

HIGH Auto-added to action items

California ADMT regulations under CCPA not addressed

The contract is silent on California CCPA/CPPA Automated Decisionmaking Technology (ADMT) regulations (pre-use notice, access, opt-out, risk assessments, cybersecurity audits) and does no...

HIGH Auto-added to action items

California AI Transparency Act (SB 942 / CAITA) watermarking and detection obligations not addressed

The contract is silent on California AI Transparency Act (SB 942/CAITA) obligations (manifest/latent disclosures, C2PA provenance/watermarking, AI-detection tool availability, and required...

HIGH Auto-added to action items

Colorado AI Act consumer-AI duties not addressed

The contract is silent on Colorado AI Act (ADAI) obligations and role allocation (developer vs. deployer), including duty of reasonable care to avoid algorithmic discrimination, consumer notices...

HIGH Auto-added to action items

EU AI Act GPAI-provider obligations not flowed through

The contract is silent on EU AI Act GPAI obligations and flow-downs. If the Mobile Application uses or provides a General-Purpose AI model in the EU, there is no requirement for Broadlaunch Mobile...

HIGH Auto-added to action items

EU AI Act prohibited-use and high-risk obligations not addressed

The contract is silent on EU AI Act prohibited-use bans and high-risk obligations, Art. 50 transparency (chatbots/synthetic media), and allocation of provider/deployer/distributor roles for...

HIGH Auto-added to action items

GDPR Article 22 automated-decision-making safeguards missing

The contract is silent on GDPR Article 22 safeguards (meaningful information about logic, human intervention, ability to express a view and contest) if any automated decisions with legal or similarl...

HIGH Auto-added to action items

NYC Local Law 144 (AEDT) obligations not allocated

The contract is silent on NYC Local Law 144 (AEDT) obligations (independent bias audit, candidate notice, public disclosure, opt-out/alternative process, record retention) and does not allocate...

HIGH Auto-added to action items

Texas Responsible AI Governance Act (TRAIGA) prohibited-use risk not addressed

The contract is silent on Texas Responsible AI Governance Act (TRAIGA) prohibited-use representations (e.g., intent to incite harm, unlawful discrimination, CSAM/deepfakes) and...

AI Output & IP (3)

HIGH Auto-added to action items

AI output indemnity gap

The contract is silent on whether Broadlaunch Mobile's IP indemnity expressly covers infringement or other claims arising from outputs of any generative AI features embedded in or used to provide...

HIGH Auto-added to action items

AI output ownership ambiguous

The contract is silent on ownership and rights in any AI-generated outputs (e.g., in-app text, images, music, levels, or other content generated by or with AI). While Section 14 allocates...

HIGH Auto-added to action items

Training-data lawfulness warranty missing

The contract is silent on a warranty from Broadlaunch Mobile that any AI/ML models used (including third-party APIs or services) were trained on data lawfully obtained and used in compliance with...